

Opinion of the Court

JUSTICE THOMAS delivered the opinion of the Court.

In this appeal, we must decide whether appellees were entitled to summary judgment on their claim that North Carolina's Twelfth Congressional District, as established by the State's 1997 congressional redistricting plan, constituted an unconstitutional racial gerrymander in violation of the Equal Protection Clause of the Fourteenth Amendment.

I

This is the third time in six years that litigation over North Carolina's Twelfth Congressional District has come before this Court. The first time around, we held that plaintiffs whose complaint alleged that the State had deliberately segregated voters into districts on the basis of race without compelling justification stated a claim for relief under the Equal Protection Clause of the Fourteenth Amendment. *Shaw v. Reno*, 509 U. S. 630, 658 (1993) (*Shaw I*). After remand, we affirmed the District Court's finding that North Carolina's District 12 classified voters by race and further held that the State's reapportionment scheme was not narrowly tailored to serve a compelling interest. *Shaw v. Hunt*, 517 U. S. 899 (1996) (*Shaw II*).

In response to our decision in *Shaw II*, the State enacted a new districting plan. See 1997 N. C. Sess. Laws, ch. 11. A map of the unconstitutional District 12 was set forth in the Appendix to the opinion of the Court in *Shaw I*, *supra*, and we described it as follows:

“The second majority-black district, District 12, is . . . unusually shaped. It is approximately 160 miles long and, for much of its length, no wider than the [In-

New York University School of Law et al. by *Burt Neuborne* and *Deborah Goldberg*; for Congresswoman Corrine Brown et al. by *Paul M. Smith*, *Donald B. Verrilli, Jr.*, and *J. Gerald Hebert*; and for the Lawyers' Committee for Civil Rights Under Law by *Matthew J. Zinn*, *David A. Stein*, *James U. Blacksher*, *Jack W. Londen*, *Daniel F. Kolb*, *Norman Redlich*, *Barbara R. Arnwine*, *Thomas J. Henderson*, and *Edward Still*.